

23NWCV00536 23NWCV00536

County: los-angeles

Division: Civil Law and Motion

Department: L

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Case Number: 23NWCV00536 Hearing Date: September 4, 2026 Dept: L

LESLIE BRIANNA PEREZ vs ABC ADULT SCHOOL (23NWCV00536)

This action for premises liability was filed on February 17, 2023. Trial is set for November 2, 2026. Defendant ABC Unified School District argues that the parties agreed upon a date of September 16, 2026 for Plaintiff Leslie Brianna Perez's medical examination with Dr. Stepan Kasimian at his Upland office. Defendant was thereafter informed that Dr. Kasimian was no longer available on September 16th date due to a scheduling conflict. Defendant offered two earlier dates (one at a different office) but Plaintiff declined. Dr. Kasimian thereafter offered September 24, 2026 at the original office location. Defendant provided that date to Plaintiff, but Plaintiff has not yet responded.

Defendant now moves ex parte for a limited extension of the discovery completion deadline to allow Plaintiff's defense medical examination to proceed on September 24, 2026 or another mutually agreeable date within the limited extension period. Defendant does not request that the discovery cutoff date be extended for any other purpose.

In opposition, Plaintiff argues that this ex parte application is Defendant's third ex parte in nine days. Plaintiff asserts that, as with the last two ex parte applications, no exigency exists as to this ex parte. Plaintiff asserts that Defendant failed to act with diligence in scheduling the medical examination and has failed to provide an adequate explanation as to why the agreed-upon date could not proceed. Further, Plaintiff properly objected to Defendant's offered alternative dates.

Defendant's Ex Parte Application for a Limited Extension of Discovery Completion as to Defense Medical Examination Due to Provide Scheduling Conflict is DENIED without prejudice. The Court finds that Defendant's request to extend the discovery deadline is premature at this time where the parties were in the process of meeting and conferring regarding a September 24, 2026 alternative medical examination date, and the deadline to complete discovery is 30 days prior to trial (October 2, 2026). No exigency exists at this time to extend the discovery deadline. Moving party to give notice.